SYNTHETIC TRAINING RECORD — FICTIONAL PARTIES, PEOPLE, PLACES, IDENTIFIERS, AND EVENTS — NOT A REAL FILING COUNTERFACTUAL — NEVER FILED OR ENTERED — DOES NOT ALTER THE ACTUAL DISTRICT RECORD

Counterfactual Preserved-Mitigation Opinion

United States Court of Appeals for the Fourth Circuit Blue Ember Biologics, LLC v. Granite Heron Logistics, Inc. No. SYN-CA4-26-CV-4105-CF-NEVER-OCCURRED Decided July 9, 2026

Composite Jurist March delivered the opinion of a unanimous panel joined by Composite Jurists Rowan and Slate. In this isolated variation, Granite Heron twice made a precise pre-verdict mitigation motion and Blue Ember received a fair opportunity to answer. We therefore reach a sufficiency question that the historical motions did not preserve.

The evidence established more than a speculative alternative. Cobalt Finch offered identified capacity, relevant technical capability, a staged qualification plan, and a December campaign roughly three months before the Aurora Quay replacement. No fatal incompatibility appeared, and the linked testimony left no reasonable basis for a net deduction below $1,500,000.

We affirm the district court's mitigation JMOL and affirm its $2,700,000 amended judgment. Because renewed judgment remains effective, the conditional Rule 59 ruling does not activate. We do not decide whether that ruling was proper or whether a new trial could be limited to gross damages and mitigation.

Jurisdiction, chronology, and review

The district court entered an original $3,900,000 judgment on October 15, 2025 after subtracting the jury's $300,000 mitigation finding from $4,200,000 in gross damages. Granite Heron filed a timely combined Rule 50(b) and Rule 59 motion on November 10. The court ruled on December 15 and entered the amended $2,700,000 judgment.

Blue Ember filed its notice on January 12, 2026. The timely posttrial motion restarted the civil appeal period, making the notice effective under Federal Rule of Appellate Procedure 4(a). We possess final-decision jurisdiction under 28 U.S.C. § 1291. The February 2 variation changes no jurisdictional date.

We review renewed judgment de novo, crediting Blue Ember's evidence and every reasonable inference. We may not weigh witnesses or choose between competing supported accounts. Because Granite Heron bears the mitigation defense under North Carolina law, judgment is proper only if the evidence permits no reasonable net deduction below the amount adopted by the district court.

This opinion follows briefing completed April 20 and unanimous submission on the briefs May 6. The absence of oral argument reflects adequate written presentation, not diminished scrutiny. Our holding is confined to the preservation assumption and fixed synthetic record identified in the caption.

The shipment loss and monetary verdict

Granite Heron accepted validation lot BE214-VL-2409A at 11:20 Eastern Daylight Time on September 12, 2024. During Fletcher staging, refrigeration lost power while an alert entered an inactive queue. Monitor CTX9-44721 recorded temperatures above minus sixty degrees from 13:08 until 14:02, peaking at minus 42.8 degrees at 13:37.

Blue Ember received the sealed load at 15:26, quarantined it, and opened deviation BE-QA-DEV-2024-0912. Limited assay showed measurable activity in sampled material but did not establish validation suitability across the lot. Authorized reviewers rejected it for the intended campaign on September 16.

The jury found liability and proximate causation. It itemized $1,350,000 for the rejected lot, $850,000 for replacement work, and $2,000,000 for bounded delay, totaling $4,200,000. It then found only a $300,000 net mitigation deduction and produced the $3,900,000 original judgment.

Granite Heron’s renewed motion challenged only the mitigation amount relevant here. The district court substituted a $1,500,000 deduction, yielding $2,700,000. Neither party uses this branch to disturb liability, shipment causation, or the three gross-damages categories.

Cobalt Finch offered a concrete accelerated course

On October 2, 2024, Cobalt Finch offered an identified Durham suite for a campaign beginning December 2. The capacity hold expired October 4 at 17:00 Eastern Daylight Time. The facility possessed suitable scale, frozen receiving, single-use systems, relevant biologics experience, trained staff, and potential analytical support.

Its plan called for an October 7 kickoff, focused assessment during October 14–15, transfer activity into November, an engineering exercise during November 11–15, and a November 22 readiness decision. Initial campaign completion was projected near December 20, followed by testing, review, and disposition.

Program-specific work remained. Cobalt Finch had not manufactured BE-214; detailed comparisons, method ownership, audit work, training, and document adaptation were incomplete. Dr. Nia Calder nevertheless described the route as feasible with elevated risk. No witness identified a fatal equipment, material, scientific, or regulatory conflict.

Blue Ember chose the already qualified Aurora Quay course scheduled to begin March 3, 2025 and released the Durham hold. Another sponsor later booked the slot. That later use does not prove BE-214 success, but it confirms that the offered capacity was genuine and scarce.

The isolated premise supplies express preservation

The February 2 order directs us to assume that Granite Heron moved when Blue Ember rested for a $1,500,000 mitigation deduction. The motion identified Cobalt Finch, the December start, $1,800,000 in claimed gross delay avoidance, the $300,000 alternative expense, and the precise requested judgment.

We also assume an after-all-evidence renewal on the same ground. Before submission, the district judge invited Blue Ember to answer, clarify existing proof, or seek limited reopening. Blue Ember relied on Solis, Calder, Brooks, the offer correspondence, the qualification file, and the financial models.

Those assumed events satisfy Rule 50(a)(2)’s specification requirement and preserve continuity under Rule 50(b). *Plyler v. Cox*, 145 F.4th 501, 510–11 (4th Cir. 2025), makes a distinct basis first raised after verdict unavailable while retaining a general sufficiency issue actually raised before verdict. The branch’s precise mitigation basis and relief were instead presented twice before verdict.

Wiener v. AXA Equitable Life Insurance Co., 153 F.4th 413, 422 (4th Cir. 2025), permits some variation between a sufficiency issue preserved in Rule 50(b) and the appellate theory supporting it. It does not authorize movement from one Rule 50(a) ground to another Rule 50(b) basis and does not create this branch’s preservation.

The premise has no broader effect. The actual Rule 50(a) documents remain causation-only. We do not edit them, infer omitted language, or treat the hypothetical exchange as transcript history. It is a segregated assumption that enables a different legal analysis on this docket alone.

Governing judgment-as-a-matter-of-law principles

Rule 50 permits judgment only when a reasonable jury lacks a legally sufficient evidentiary basis for the challenged finding. On review, the verdict winner receives supported inferences, and courts do not assess credibility or prefer the greater apparent weight. A complete failure of proof on a burdened issue nonetheless requires judgment.

Granite Heron’s express pre-verdict motions are necessary but not sufficient. Preservation identifies the ground available for renewal; it does not lower the merits threshold. We therefore independently examine whether the fixed evidence could support a mitigation deduction smaller than $1,500,000.

North Carolina places mitigation on the party asserting it. *Thermal Design, Inc. v. M&M Builders, Inc.* requires proof that reasonable action could have reduced loss and proof of the attributable reduction. *Clark v. Bichsel* describes mitigation as an affirmative defense rather than part of Blue Ember’s gross-damages showing.

Our holding respects that burden. We do not require Blue Ember to disprove a merely imagined alternative. We ask whether the particular suite, calendar, technical evidence, and quantified economics left room for a reasonable jury to value the established opportunity at only $300,000 net.

The defense proved reasonableness and amount

Cobalt Finch's offer was not a generic statement of interest. It identified a reserved suite, a prompt kickoff, work packages, responsible functions, a readiness gate, and a manufacturing date. Calder confirmed relevant capability and a feasible path. No record evidence supplied a concrete obstacle likely to defeat the schedule.

Blue Ember reasonably sought assurance, but mitigation does not permit an injured party to demand certainty before pursuing a proportionate alternative. The staged plan allowed early review and controlled expenditure. Releasing the hold before focused assessment prevented the remaining questions from being answered and surrendered the only identified route to months of acceleration.

Dr. Elodie Park mapped that course to the bounded delay category. She found $1,800,000 of the $2,000,000 delay avoidable and subtracted the complete $300,000 working estimate for accelerated transfer, leaving $1,500,000 net. Her calculation did not reduce original-lot or replacement costs.

Kellan Brooks disputed confidence but supplied no alternative probability, date, added expense, or residual-loss figure. General execution risk could justify caution. On this unusually concrete record, it could not rationally shrink the evidenced net benefit to $300,000 while every material milestone and monetary input remained otherwise unrebutted.

No reasonable jury could retain a smaller deduction

Viewing the evidence for Blue Ember, we accept that qualification was incomplete, production was not guaranteed, and downstream disposition followed manufacturing. We also accept that another sponsor's later booking does not establish program success. Those propositions do not create a legally sufficient bridge to the jury's number.

The site's relevant capability was undisputed. The proposal disclosed no fatal incompatibility and offered a staged transfer rather than an immediate irreversible commitment. Its calendar began manufacturing about three months before Aurora Quay. Park's model left part of the delay intact and deducted the full identified alternative expense.

The jury could not reasonably reduce the deduction below $1,500,000 by assigning an unidentified failure probability, inventing unsupported costs, or treating every open qualification task as if it erased acceleration. Brooks's critique established uncertainty in principle but offered no evidence from which $300,000 net could be derived.

Accordingly, Granite Heron proved the minimum reduction as a matter of law. Subtracting $1,500,000 from the $4,200,000 gross award yields $2,700,000. The district court did not disturb any gross category; it corrected the unsupported mitigation component and entered the arithmetic consequence.

Rule 50(c) required a conditional determination

Granite Heron paired its renewed motion with an alternative request for a new trial. When a district court grants renewed judgment, Rule 50(c)(1) requires it also to rule conditionally on any new-trial motion and state the grounds. The condition preserves an orderly consequence if the judgment later ceases to control.

Judge Miriam D. Carver complied. She conditionally concluded that the monetary verdict was against the clear weight and identified gross damages and mitigation as the subjects of a possible retrial. She excluded liability and causation. That ruling remains recorded alongside the grant of JMOL.

Rule 50(c)(2) describes appellate consequences when renewed judgment is reversed or vacated. It permits the verdict winner to challenge the conditional ruling and authorizes appropriate directions. Authorities including *Atlas Food Systems & Services, Inc. v. Crane National Vendors, Inc.* and *Rice v. Community Health Association* inform new-trial scope when the condition becomes material.

Our affirmance means the triggering contingency does not occur. The conditional ruling remains legally present because the district court entered it, yet it has no operative effect on the affirmed judgment. This distinction controls the limits of our disposition.

We do not decide the conditional ruling or its scope

Blue Ember argues that the $300,000 finding was not against the clear weight and that any retrial could not properly be confined to financial questions. Granite Heron defends the district court’s reasoning but agrees that those disputes need not be adjudicated if JMOL remains in force.

We express no view on either question. We do not affirm or reverse the Rule 59 ruling, decide whether the evidence warranted a new trial, or determine whether gross damages and mitigation are separable from liability and causation. Those issues do not affect today’s operative judgment.

The term “dormant” describes procedural effect, not validity. The conditional order continues to exist as Rule 50(c) requires, but affirmance leaves its condition unsatisfied. A discussion of its merits would create a needless appellate component and could obscure the narrow basis for judgment.

Our judgment will therefore contain exactly the rulings necessary to resolve this appeal: the mitigation JMOL is affirmed, and the amended judgment is affirmed. No mandate instruction authorizes a new trial, and no silence should be read as approval or disapproval of the proposed damages-only scope.

The amended judgment implements only mitigation relief

The jury's gross award remains $4,200,000: $1,350,000 for the rejected validation lot, $850,000 for replacement work, and $2,000,000 for bounded delay. We neither revise those amounts nor revisit their causal foundation. The judgment-as-a-matter-of-law issue begins after gross damages are combined.

Park's $1,800,000 avoidance figure minus $300,000 in alternative expense produces the $1,500,000 net mitigation deduction. Applying that deduction yields $2,700,000. The December 15 amended judgment states that amount and preserves the other adjudicated relationships.

The change from the October 15 judgment is therefore $1,200,000, reflecting substitution of $1,500,000 for the jury's $300,000 deduction. It is not a new damages category, an additional charge against Blue Ember, or an offset applied twice.

Granite Heron sought no judgment on contract liability or shipment causation in this preserved-mitigation appeal. Blue Ember's challenges to those subjects are likewise outside the questions presented. Affirming the amended judgment completes the monetary consequence without a remand or further district factfinding.

Counterfactual isolation governs every consequence

This opinion arises solely from the February 2 variation and the docket explicitly marked as never occurred. It does not establish that Granite Heron actually raised mitigation in either Rule 50(a) motion. The actual sources remain causation-only and retain their original content and legal consequence.

The opinion also does not alter the certified district evidence. Shipment identifiers, facility facts, witness testimony, damages figures, verdict, judgments, and posttrial chronology are fixed. Only the preservation premise changes, allowing a controlled comparison between procedural default and merits review.

Any petition for rehearing, mandate event, or stay request based on this opinion must use the same counterfactual docket and warnings. No clerk, party, or reader may cite those later sources as activity on another appeal. Branch documents train sequence and legal effect without claiming real filing or entry.

This limitation is substantive to our exercise. The affirmance operates within the synthetic branch only; it cannot amend the historical district record, create collateral consequences, or support factual inference elsewhere. The clerk shall preserve segregation when circulating the judgment and any subsequent mandate materials.

Disposition

For the reasons stated, we hold that the expressly preserved mitigation ground was available for renewed judgment and that no reasonable jury on this fixed record could select a net deduction below $1,500,000. We do not rely on the wording of the actual causation-only motions.

First, the district court's grant of judgment as a matter of law on mitigation is affirmed. Second, the December 15, 2025 amended judgment awarding Blue Ember $2,700,000 is affirmed. Those are the complete and exclusive components of our appellate disposition.

We do not decide the district court's conditional Rule 59 ruling. We likewise do not decide whether a hypothetical new trial could be limited to gross damages and mitigation. Because JMOL remains effective, the condition does not activate, and no remand or additional instruction is warranted.

The clerk shall enter judgment on July 9, 2026 and serve counsel electronically. Ordinary rehearing and mandate periods run only within this isolated docket. Composite Jurists March, Rowan, and Slate concur in the opinion and in the exact two-component disposition. Affirmed.